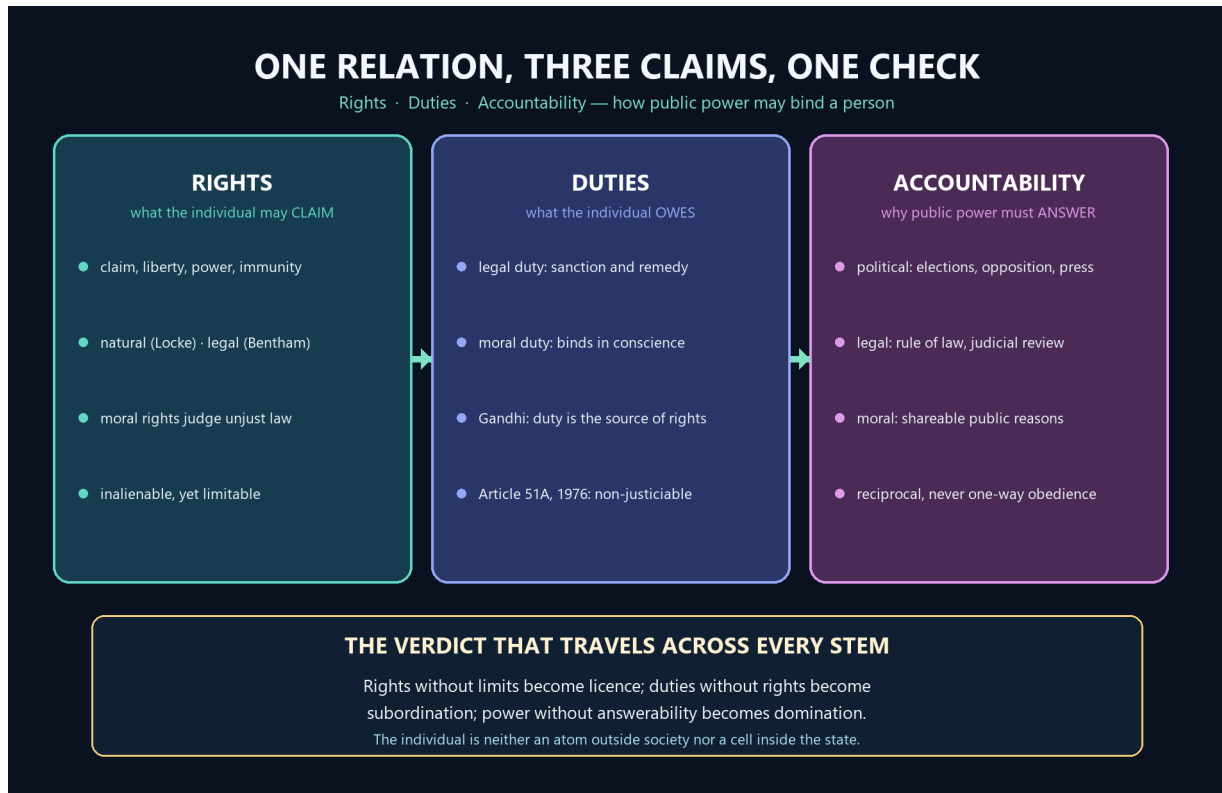


Individual and State - Learner-v2

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Individual and State - Learner-v2 Source-Complete Learning Session

BASIC MCQS / REMEDIATION

RAPID REVISION 1 - The Individual-State Frame: Concepts and Why a State

- The theme = the justified relation between the **individual** and the **state**, organised as **rights** (claims), **duties** (obligations) and **accountability** (answerable power).
- **Why a state:** order/security, rights protection, public goods, justice and welfare, collective action -- but a protector that can dominate must be *justified, limited and answerable*, not merely obeyed.
- **Keep apart:** individual != unit; society != state; community/nation != legal state; government (organ, transient) != state (authority, permanent).
- **Relation spectrum:** minimal -> welfare/enabling -> socialist -> totalitarian
-> stateless; balance autonomy, justice and order with a graded verdict.
- Working thesis: rights protect individuality, duties sustain order, accountability legitimises coercion; any one without the other two distorts.

Retrieve with MCQs 1-4.

RAPID REVISION 2 - Rights I: What a Right Is and Its Sources

- **Right** = justified claim/liberty/power/immunity recognised by a moral or legal order; not a mere need or preference.
- **Natural (Locke):** rights prior to the state; life, liberty, property; government is a *fiduciary trust*, forfeit on breach -> basis of resistance.
- **Legal / positivist (Bentham):** rights are "children of law"; natural rights = "nonsense upon stilts." He rejects *natural*, not *legal*, rights.
- **Moral rights:** justified by ethics before enactment; ground the *critique* of unjust law (anti-slavery, anti-colonial).
- Trap: do not say Bentham denied all rights; do not treat legal validity as the same as moral legitimacy.

Retrieve with MCQs 5-8.

RAPID REVISION 3 - Rights II: Hohfeld, Will/Interest, Human Rights and Correlativity

- **Hohfeld:** claim-right (corr. duty), liberty (corr. no-right), power (corr. liability), immunity (corr. disability). Only the *claim-right* strictly pairs with a duty.
- **Will theory** = rights protect choice/agency; **interest theory** = rights protect vital interests; mixed views cover children and the incapable.
- **Human rights:** owed to all as human; universalist (common aspiration) vs relativist (cultural plurality) -> balance = common core, plural articulation.
- **Correlativity:** normatively necessary, not a strict logical identity; liberties lack strict duty-partners.
- Traps: don't reduce Hohfeld to one formula; don't treat correlativity as

identity; don't call universalism cultural homogenisation.

Retrieve with MCQs 9-12.

RAPID REVISION 4 - Duties: Nature, Gandhi's Duty-Centrism and the Priority Debate

- **Duty** = what the individual owes; **legal** (enforceable, has a remedy) vs **moral** (binds in conscience, grounds critique).
- **Gandhi**: "true source of rights is duty"; do the duty, the right follows; duty-first but *not* statist -- it can justify disobedience to unjust power.
- **Article 51A (Fundamental Duties), 42nd Amendment 1976**: non-justiciable; exhortatory, not court-enforceable.
- **Priority debate (2023)**: verdict = reciprocity/co-originality with a sequencing caveat; foregrounding duty is fine, demoting rights is not.
- Traps: Article 51A is *not* enforceable; Gandhi's duty-first is *not* obedience to the state.

Retrieve with MCQs 13-16.

RAPID REVISION 5 - Accountability of Public Power

- **Accountability** = public power must answer for its use; three channels = **political** (elections, opposition, press), **legal** (rule of law, judicial review, remedies), **moral** (reasons, dignity).
- Power that never answers = **domination**; accountability is the institutional form of "authority, not mere force."
- **Reciprocal**, not one-way: the *state* is answerable to citizens (Locke's fiduciary trust), while rights also carry citizen *responsibilities*.
- **2019 move**: correct the direction -- rights make the *State* accountable to citizens.
- Trap: elections alone are not accountability without rule of law and a free press.

Retrieve with MCQs 17-20.

RAPID REVISION 6 - Theories of the Relationship: Liberal, Idealist and Social Contract

- **Social contract trio**: Hobbes (war -> absolute sovereign; near-zero resistance), Locke (natural law -> limited fiduciary govt; resistance on breach), Rousseau (general will -> civic freedom; "forced to be free").
- **Liberal**: person prior to state; limited government, private sphere (Locke, Mill).
- **Idealist**: Hegel (state = ethical life; freedom in institutions), Green (positive freedom; state removes hindrances) -- risk = deifying the state.
- **Marx (as relation-theory)**: state = class instrument; formal rights mask real unfreedom; withering away (ideology depth routed out).
- Traps: don't read Hegel as pro-absolutism; present Rousseau's paradox *with* its reply; name the state-of-nature premise before the contract.

RAPID REVISION 7 - Radical and Situated Critiques: Anarchist, Marxist, Welfare, Communitarian, Feminist

- **Anarchism (philosophical):** the state's right to rule is presumptively illegitimate; order can be voluntary. Objections: feasibility, adjudication, defence, transition. (Named anarchists routed to Ideologies.)
- **Gandhi's oceanic circles:** decentralised swaraj, individual at the centre, outer rings serve inner; non-violent, duty-bound -- *not* Western anarchism.
- **Marxist critique:** formal rights can mask material domination -> demand real capabilities (welfare response).
- **Critiques of the atomist self:** welfare (formal liberty empty without means), communitarian (embedded self), feminist (care, dependence, personal is political) -- all must still guard dissent and minority rights.
- Trap: unconditional != inalienable; bounded rights do not entail anarchy.

RAPID REVISION 8 - Political Obligation: Why Should the Individual Obey the State?

- **Political obligation** = a *moral* duty to obey the law *because* it is law (content-independent), not mere habit or fear.
- **Six grounds:** consent, fair play, natural duty, associative, gratitude, and the anarchist "maybe none."
- **Four tests:** generality, particularity, content-independence, defeasibility.
- **Key positions:** Raz's service conception (pre-emptive reasons); fair-play (Hart/Rawls) vs Nozick's free-rider reply; Simmons's philosophical anarchism; Dworkin (principles, hard cases, rights as trumps).
- Trap: obedience is not self-evident; obligation is defeasible -- which is what makes justified disobedience possible.

RAPID REVISION 9 - Disobedience, Resistance and the Indian Constitutional Application

- **Ladder of refusal:** legal dissent -> conscientious objection -> civil disobedience -> resistance/revolution (rising gravity, stronger justification).
- **Civil disobedience:** public, non-violent, law-testing, **penalty-accepting**; affirms the rule of law while breaching one law (Rawls: nearly just society, channels exhausted).
- **Conscientious objection** = personal exemption; **resistance** = withdraws allegiance from the regime.
- **India:** no fundamental right to break law; Article 19 = reasonable restrictions; Thoreau 1849 -> Salt Satyagraha 1930 -> Ambedkar's "grammar of anarchy" (1949).
- Trap: don't conflate the three forms; don't invent a constitutional right or a case.

RAPID REVISION 10 - Inter-Thinker Debates, Criticisms and Common Traps

- **Answer spine (D-L-S-O-I-V):** Define -> Locate on spectrum -> State rivals ->

Objection-reply -> India evidence -> graded Verdict.

- **Debates to stage:** Hobbes/Locke (resistance), Locke/Rousseau (will), liberal/communitarian (self), liberal/idealist (freedom), Gandhi/Western anarchism, Aristotle/Plato (statism vs individualism).

- **Criticisms** attach to every position; the best answers pre-empt the objection to their *own* thesis.

- **Traps:** state != government; Bentham != anti-all-rights; Article 51A not enforceable; India = constitutional supremacy, *not* parliamentary sovereignty; no fabricated cases/quotes/dates.

- **Verdict template:** neither atom-outside-society nor cell-inside-state -- a justified balance of dignity, justice and order.

CANONICAL EXAM APPARATUS (PRESERVED VERBATIM)

The examiner apparatus below is reproduced verbatim from the canonical Individual-and-State.md (headings demoted, navigation links stripped). It is preserved intact so that no canonical depth - the keyword and statement bank, the corpus-driven depth delta, the PYQ routing table, the answer architecture with its directive decoder, selectable evidence bank and graded verdict formulas, the link-outs and the sources - is lost in the layered reorganisation.

Keyword and Statement Bank (with Corpus-Driven Depth Delta)

8.1 Keywords

Promoted vocabulary (this pass) ANALYSIS:: political obligation · content-independence · generality · particularity · defeasibility · tacit consent · fair play · free-riding · natural duty of justice · associative obligation · gratitude · philosophical anarchism · service conception · pre-emptive reason · principles vs rules · hard cases · rights as trumps · conscientious objection · civil disobedience · resistance · revolution · acceptance of penalty · grammar of anarchy

- FACT: claim-right
- FACT: liberty / privilege
- FACT: power
- FACT: immunity
- FACT: correlativity
- FACT: dignity
- FACT: reciprocity
- FACT: self-realisation
- FACT: fiduciary government
- FACT: rule of law
- FACT: moral autonomy
- FACT: public trust
- FACT: civic responsibility
- FACT: dharma
- FACT: swaraj

- FACT: class domination

8.2 Reusable statement lines

- FACT: Rights are protections of personhood; duties are disciplines of coexistence; accountability is the ethics of public power.
- FACT: A democratic state is justified not by mere command but by rights-protection and answerable authority.
- ANALYSIS: The rights-duties relation is analytically distinguishable but normatively inseparable.
- ANALYSIS: Gandhi's duty-centrism is not anti-rights; it is a critique of rights without moral self-restraint.
- ANALYSIS: Human-rights universalism is strongest when defended as common human aspiration without denying cultural plurality.
- FACT: Social contract theory secularises the origin of the state by grounding political obligation in the standpoint of individuals.

CORPUS-DRIVEN DEPTH DELTA (expanded PYQ audit)

- ANALYSIS: **Priority:** Primary ownership is 9 of 112 parts, including two in 2024 after demand-based rerouting.
- FACT: **Required doctrinal depth:** The corpus requires human rights and dignity, accountability, Indian tradition and rights, social contract and human rights, unconditional rights, and the 2024 statism-individualism balance.
- WRONG: **Trap / answer consequence:** Do not route every occurrence of "individual" here: ownership turns on rights, duties, accountability or the normative individual-state relation.

PYQ Routing Table (2018-2025)

ANALYSIS: **Corpus signal:** 9 primary-owned question-parts out of 112. The local Paper II corpus is continuous from 2018 through 2025. Cross-links do not create duplicate ownership.

Year	Question	Marks	Exact demand
2018	Q4(a)	20	"Human rights and human dignity would no longer be the product of a particular culture, rather a common human aspiration for an ideal world." Discuss.
2019	Q2(a)	20	Do rights make citizens accountable to the State? Argue in the context of the present Indian scenario.
2020	Q2(c)	15	Is Indian tradition antagonistic to Individual Rights? Consider it by taking recourse to the doctrine of Human Rights.
2021	Q4(c)	15	Evaluate whether the social contract theory adequately addresses the different issues of human rights.
2022	Q4(b)	15	Does idea of unconditional rights necessarily lead to anarchy? Critically examine.
2023	Q2(b)	15	Do you agree that duty and accountability must be given priority over rights for the better functioning of a State? Justify your answer.
2024	Q1(b)	10	Present a brief account of origin and development of Social Contract Theory.
2024	Q3(a)	20	Do you agree with the view that Aristotle was more successful than Plato in steering a middle course between 'Statism' and 'individualism'? Discuss with arguments.
2025	Q4(c)	15	"Duties are of the nature of obligation while Rights are of the nature of entitlement. Therefore there is no necessary connection between the two." Do you agree with this statement? Give reasons and justification for your answer.

See the Socio-Political PYQ Bank, 2018-2025.

Answer Architecture (10 / 15 / 20 Marks)

10.0 Directive decoder - the verb fixes the structure

Directive in the stem	What is actually scored	Compulsory structural move	Failure mode
Explain / What is meant by	internal logic of one concept	definition -> analytic components -> one distinction -> one example	evaluating a doctrine the stem asked you only to expound
Discuss	exposition plus one adjudicated tension	doctrine -> rival -> objection -> reply -> verdict	assembling four thinkers with no adjudication

Directive in the stem	What is actually scored	Compulsory structural move	Failure mode
Critically examine / evaluate	the objection-reply layer <i>is</i> the answer	two objections, each with reply and residual problem	a criticism list with no defence offered
Are X and Y necessarily connected?	the modal word necessarily must be attacked directly	distinguish conceptual necessity from institutional desirability; supply a counter-example	answering "yes, they are related"
Should X have priority over Y?	a priority <i>criterion</i> must be named before ranking	name the criterion -> rank -> concede what the loser secures	asserting balance without a standard
Does X adequately address Y?	adequacy is relative to a stated benchmark	fix the benchmark -> test -> identify the specific inadequacy	vague praise or vague dismissal
Trace the origin and development	chronology plus conceptual movement	Hobbes -> Locke -> Rousseau, with what each <i>changes</i> and why	three biographies in sequence

10.1 10-mark method (~150 words · 4 moves · ~12 minutes)

1. **Exact concept (2 lines)** in technical vocabulary: *claim-right, liberty/privilege, power, immunity, content-independence, tacit consent, general will, civil disobedience*.
2. **Analytic components (4-5 lines)** as numbered premises or as a correlativity/Hohfeld move - one precision only a reader of the doctrine could make.
3. **One evidence unit** from §10.4, with its limitation.
4. **Graded verdict (2 lines)** from §10.5.

WRONG: At 10 marks do not run all six obligation families or all four rungs of the disobedience ladder. Use one family or one contrast, fully worked.

10.2 15-mark method (~220 words · 6 moves · ~18 minutes)

1. **Frame the axis of dispute**, not the topic ("the question is whether obligation is content-independent or issue-by-issue").
2. **Position A** with its presupposition about the person and the state.
3. **Position B** as the strongest rival, with the presupposition it denies.
4. **One table** - the six obligation families (§4A.2), the rules/principles contrast (§4A.4), the disobedience ladder (§4A.5), or Hohfeld's incidents (§1.5).
5. **One fully worked objection -> reply -> residual problem**.
6. **Conditional verdict** stating when each side holds.

ANALYSIS: For rights-versus-duties stems, the mark-bearing move is the **correlativity analysis**: show which rights have strict correlative duties (claim-rights) and which do not (liberties), instead of asserting that "rights and duties are two sides of a coin".

10.3 20-mark method (~300 words · 8 moves · ~25 minutes)

1. **Provisional thesis** using the stem's own directive verb.
2. **Conceptual map**: define right / duty / accountability / obligation as the stem requires; state the criterion of assessment.
3. **Strongest case for the proposition**, reconstructed as premises.
4. **Strongest rival tradition** - liberal, idealist, Gandhian, Marxist or anarchist - in its best form.
5. **Two objection -> reply chains**, each ending in a residual problem.
6. **The disobedience ladder or the obligation grid** deployed as the analytical spine, where the stem concerns obedience, resistance or accountability.
7. **One dated Indian illustration**, classified accurately, with the reminder that Fundamental Duties are non-justiciable and that legal status is not moral justification.
8. **Graded verdict** conceding something to the losing side.

ANALYSIS: On social-contract stems, the mark-bearing move is showing what each contractarian *changes*: Hobbes secures order by an irreversible transfer; Locke adds trust, limits and a right of resistance; Rousseau relocates sovereignty in the general will and thereby makes obedience self-legislation. Then test the whole family against the human-rights benchmark - contract grounds rights in agreement, so it struggles to protect non-signatories, the incapable and future generations.

10.4 Selectable evidence bank - 1 unit at 10 marks, 2 at 15, 4-5 at 20

Each unit is **Claim -> Named anchor -> Use for -> Limitation**.

- **I1 · Rights precede the state.** Claim: life, liberty and estate are held in the state of nature; government is a trust that may be forfeited -> Named: Locke, *Two Treatises of Government* -> Use for: origin-of-rights and resistance stems -> Limit: the theological and property premises are not available to a secular reader without reconstruction.
- **I2 · Rights are children of law.** Claim: there are no rights antecedent to legal establishment; natural rights are rhetorical -> Named: Bentham's positivist challenge -> Use for: 10-mark "what is a right" stems; the strongest foil to I1 -> Limit: cannot explain the critical use of rights language *against* existing law.
- **I3 · Rights are not one thing.** Claim: "a right" resolves into claim, liberty, power and immunity, with distinct correlatives -> Named: Hohfeld, *Fundamental Legal Conceptions* -> Use for: any rights-duties correlativity stem -> Limit: an analytic scheme, not a moral justification.
- **I4 · Rights protect choices, or interests.** Claim: will theory makes the right-holder a small sovereign; interest theory makes rights protectors of well-being -> Named: the will/interest dispute (§1.6) -> Use for: rights of children, animals, the incapable -> Limit: each theory handles a different hard case badly.
- **I5 · Obligation has six candidate grounds, and each fails a test.** Claim: consent, fair play, natural duty, associative, gratitude and anti-obligation accounts are tested by generality, particularity, content-independence and defeasibility -> Named: §4A.2 grid; A. John Simmons as the leading sceptic -> Use for: any "why obey the state" stem -> Limit: scepticism about a *general* obligation leaves most laws independently binding.
- **I6 · Authority is a service, not a command.** Claim: an authority is legitimate when its directives help subjects conform better to reasons that already apply to them, and those directives then pre-empt rather than merely outweigh private judgment -> Named: Raz's service conception -> Use for: the best modern reply to anarchism -> Limit: the justification is instrumental, so authority is bounded and does not extend beyond the domains where it improves conformity.
- **I7 · Law contains principles, not only rules.** Claim: in hard cases judges reason from principles that have weight rather than all-or-nothing application, and rights function as trumps against collective goals -> Named: Dworkin, *Taking Rights Seriously* (1977) -> Use for: rights-as-constraints, accountability and adjudication stems -> Limit: the right-answer thesis is hard to sustain under permanent reasonable disagreement.
- **I8 · Disobedience is graded, not binary.** Claim: conscientious objection, civil disobedience, resistance and revolution differ in aim, publicity, legality, scope and attitude to the system -> Named: §4A.5 ladder -> Use for: any obedience/resistance stem - the single highest-value structural move available on this clause -> Limit: real movements often occupy more than one rung at once.
- **I9 · Civil disobedience is public, non-violent and penalty-accepting.** Claim: openly breaking a specific unjust law while accepting arrest demonstrates fidelity to law as such -> Named: Gandhi's 1930 Salt Satyagraha (march begun March 1930; salt law broken 6 April 1930) -> Use for: the concept's structure, illustrated -> Limit: FACT: a dated historical illustration only; it does not show that civil disobedience is always justified.
- **I10 · Conscience over majority.** Claim: the individual must not lend personal support to institutional wrong -> Named: Thoreau, *Civil Disobedience* (1849) -> Use for: conscientious-refusal stems -> Limit: ANALYSIS: Thoreau's model is individual withdrawal, not organised mass campaign; do not equate it with satyagraha.
- **I11 · Constitutional methods displace agitational ones.** Claim: where constitutional means of redress exist, extra-constitutional agitation is the grammar of anarchy and should be abandoned -> Named: Ambedkar, Constituent Assembly concluding address, **25 November 1949** -> Use for: the compulsory counterweight to I9 and I10 -> Limit: the argument's force depends on constitutional channels being genuinely open **to the group in question**.
- **I12 · Duty-centrism as an alternative starting point.** Claim: rights well performed are the fruit of duties well done; obligation is prior in the order of moral cultivation -> Named: Gandhi (§2.3); the *dharma* tradition (§2.4) -> Use for: rights-versus-duties priority stems -> Limit: ANALYSIS: a duty-first order can be used to postpone rights for the powerless, which is exactly Ambedkar's objection; state that objection rather than leaving the position unqualified.
- **I13 · Duties in the Indian constitutional text are non-justiciable.** Claim: Article 51A, inserted by the Constitution (Forty-second Amendment) Act, **1976**, lists Fundamental Duties that courts do not directly enforce -> Named: constitutional text -> Use for: Indian illustration in any rights/duties stem -> Limit: FACT: non-justiciability is a legal fact; it neither proves nor disproves any moral thesis about duty.

10.5 Graded verdict formulas (adapt; never reproduce mechanically)

- **Modal verdict (for "necessarily connected" stems):** "Claim-rights are necessarily correlative to duties; liberties are not - so the connection is conceptual for one class of rights and merely institutional for another."
- **Conditional verdict:** "The obligation holds where <institutions are substantially just and channels genuinely open> and lapses where they are not; the question is therefore one of degree, not of kind."
- **Narrowed-scepticism verdict:** "The sceptic defeats the claim to a *general, content-independent* duty of obedience, but not the claim that most particular laws are independently binding - so the practical distance between the sceptic and the traditionalist is small."
- **Ladder verdict:** "Conscientious refusal, civil disobedience, resistance and revolution answer to progressively heavier burdens of justification; the stem is answered by locating the case on that ladder, not by approving or condemning disobedience as such."
- **Reconciliation verdict:** "A mature polity does not choose between rights and duties; it constitutionalises rights, cultivates duties and institutionalises accountability, since each without the others is unstable."
- **Dignity-authority verdict:** "The individual is neither an atom outside society nor an expendable part of the state; the task of political philosophy is to specify a justified relation between dignity and authority."

Link-Outs to Related Topics

- Sovereignty - limits on supreme power, pluralist suspicion of absolutism.
- Political Ideologies - liberal, Marxist and anarchist background debates.
- Social-Political Ideals - liberty, equality, justice as wider normative frame.
- Humanism, Secularism, Multiculturalism - human dignity and universalism debates.
- Caste, Gandhi, Ambedkar - Gandhian duty-centrism and constitutional rights discourse.

Sources

- O. P. Gauba, *An Introduction to Political Theory* and writings on socio-political philosophy.
- Rajeev Bhargava and Ashok Acharya, works on political theory and Indian political thought.
- Harold J. Laski, *A Grammar of Politics*.
- John Locke, *Two Treatises of Government*.
- Thomas Hobbes, *Leviathan*.
- Jean-Jacques Rousseau, *The Social Contract*.
- Wesley Newcomb Hohfeld, *Fundamental Legal Conceptions*.
- Ronald Dworkin, *Taking Rights Seriously (1977)* - principles, hard cases and rights as trumps. Cited by title and year only; paraphrased, never quoted.
- A. John Simmons, writings on political obligation and the failure of the standard grounds to establish a general duty of obedience. Cited by position, not by page or verbatim wording.
- Joseph Raz, writings on authority - the service conception and pre-emptive reasons. Cited by position, not by page or verbatim wording.
- H. L. A. Hart and John Rawls, the fair-play and natural-duty accounts of political obligation, used as named positions within §4A.2.
- Henry David Thoreau, *Civil Disobedience (1849)*; first published as "Resistance to Civil Government".
- M. K. Gandhi, writings on *satyāgraha*; the Salt Satyagraha of **1930** used as a dated historical illustration.
- B. R. Ambedkar, concluding address to the Constituent Assembly, **25 November 1949** - the "grammar of anarchy" argument, attributed by occasion and position rather than by extended quotation.
- The Constitution of India - Legislative Department, Articles 19 and 51A, used as dated constitutional illustration only; Fundamental Duties are non-justiciable.

ANALYSIS: **Provenance note for §4A (added in this pass):** the political-obligation grid, the Dworkin module and the disobedience ladder are named-scholar reconstructions adapted into this Philosophy owner. No page, chapter, edition or verbatim wording is asserted for Locke, Hart, Rawls, Simmons, Raz, Dworkin, Thoreau, Gandhi or Ambedkar, and no empirical claim is made about any Indian government, party or period. The Austin -> Kelsen -> Hart jurisprudential sequence is **not** developed here; it is owned by Sovereignty §3A.

ORIGINAL MCQ MASTERY SET - EXACTLY 48 QUESTIONS

Questions 1-40 are core coverage - four per subtopic across the ten subtopics; Questions 41-48 are remedial items targeting the most common misreadings. Correct answers rotate strictly A -> B -> C -> D 12 times.

MCQ 1

Which statement best distinguishes the *state* from the *government*?

A. The state is the organised public authority claiming binding power over a territory; the government is the transient organ that exercises that authority. B. The state and the government are exact synonyms in political theory. C. The government is permanent while the state changes with every election. D. The state is a purely voluntary association identical to civil society.

Correct answer: A - The state is the organised public authority claiming binding power over a territory; the government is the transient organ that exercises that authority.

Explanation: The state is the wider, more permanent authority; the government is the organ that wields it for the time being.

MCQ 2

The standard justification for having a state at all rests primarily on its supplying:

A. the ruler's personal glory and prestige. B. order and security, rights-protection, public goods, justice/welfare and collective action that individuals cannot secure alone. C. the abolition of all private property. D. the untrammelled will of a hereditary monarch.

Correct answer: B - order and security, rights-protection, public goods, justice/welfare and collective action that individuals cannot secure alone.

Explanation: The state is justified instrumentally by the goods it secures for individuals who cannot secure them alone.

MCQ 3

'Legitimacy' differs from 'mere coercion' because legitimacy involves:

A. a larger quantity of physical force. B. a bigger standing army. C. a right to rule that subjects have reason to accept, not merely superior power. D. the complete absence of any law.

Correct answer: C - a right to rule that subjects have reason to accept, not merely superior power.

Explanation: Legitimacy is justified authority subjects have reason to accept; coercion is bare force.

MCQ 4

On the individual-state relation spectrum, the correct order from least to most state is:

A. totalitarian -> welfare -> minimal -> stateless. B. stateless -> totalitarian -> welfare -> minimal. C. welfare -> minimal -> stateless -> totalitarian. D. stateless -> minimal -> welfare/enabling -> socialist -> totalitarian.

Correct answer: D - stateless -> minimal -> welfare/enabling -> socialist -> totalitarian.

Explanation: From least to most state involvement: stateless, minimal, welfare/enabling, socialist, totalitarian.

MCQ 5

Bentham's phrase 'nonsense upon stilts' was aimed at:

A. natural rights -- rights claimed prior to and independent of positive law. B. all legal rights without exception. C. the very idea of parliamentary legislation. D. Locke's theory of property alone.

Correct answer: A - natural rights -- rights claimed prior to and independent of positive law.

Explanation: Bentham rejected *natural* rights as rhetorically inflated while accepting legal rights as 'children of law.'

MCQ 6

For Locke, government is best described as:

A. an absolute sovereign owed unconditional obedience. B. a fiduciary trust that may be forfeited if it breaches its ends, grounding a right of resistance. C. an organism in which the individual is a mere cell. D. a purely commercial contract for trade.

Correct answer: B - a fiduciary trust that may be forfeited if it breaches its ends, grounding a right of resistance.

Explanation: Locke treats government as a trust; breach forfeits authority and licenses resistance.

MCQ 7

The distinctive role of *moral* rights (as against legal rights) is that they:

A. are always enforceable in a court of law. B. are created only by statute. C. let us criticise an unjust law as unjust before it is changed. D. come into existence only after legal recognition.

Correct answer: C - let us criticise an unjust law as unjust before it is changed.

Explanation: Moral rights ground the critical use of rights-language against existing law (anti-slavery, anti-colonial).

MCQ 8

Natural, legal and moral rights are best understood as:

A. three names for exactly the same thing. B. mutually exclusive rivals of which only one is valid. C. purely rhetorical labels with no analytic difference. D. different registers -- ground (nature), enforcement (law) and critique (morality) -- that a mature system combines.

Correct answer: D - different registers -- ground (nature), enforcement (law) and critique (morality) -- that a mature system combines.

Explanation: The three registers do different work; strong answers integrate rather than pick one.

MCQ 9

In Hohfeld's scheme, the strict correlative of a *claim-right* is:

A. a duty. B. a liberty. C. a power. D. an immunity.

Correct answer: A - a duty.

Explanation: Only the claim-right is strictly correlative to a duty; a liberty correlates to a 'no-right.'

MCQ 10

Will theory and interest theory of rights disagree about:

A. whether rights exist at all. B. what a right fundamentally protects -- choice/agency versus important interests/well-being. C. whether Bentham was a legal positivist. D. the number of Hohfeldian incidents.

Correct answer: B - what a right fundamentally protects -- choice/agency versus important interests/well-being.

Explanation: Will theory protects choice; interest theory protects interests -- the split matters for children and the incapable.

MCQ 11

The balanced position on the universality of human rights is that:

A. all cultures already articulate rights in identical language. B. human rights are purely Western and inapplicable elsewhere. C. universality of the aspiration (dignity, protection from cruelty) need not mean uniformity of articulation. D. universality requires the erasure of cultural difference.

Correct answer: C - universality of the aspiration (dignity, protection from cruelty) need not mean uniformity of articulation.

Explanation: A thin universal core with plural articulation avoids both cultural hegemony and relativist nihilism.

MCQ 12

'Every right has a matching duty' is:

A. strictly true for all four Hohfeldian incidents. B. false even for claim-rights. C. true only for immunities. D. true for claim-rights but loose for liberties, so correlativity is normative rather than a strict logical identity.

Correct answer: D - true for claim-rights but loose for liberties, so correlativity is normative rather than a strict logical identity.

Explanation: Claim-rights strictly correlate with duties; liberties do not, so the slogan holds only partly.

MCQ 13

Gandhi's account of the source of rights is that:

A. rights are earned by and follow from performed duty ('the true source of rights is duty'). B. rights precede and ground all duties. C. rights and duties are wholly unrelated. D. only the state can confer any right.

Correct answer: A - rights are earned by and follow from performed duty ('the true source of rights is duty').

Explanation: Gandhi inverts the liberal order: do the duty and the right follows -- duty-first, yet not statist.

MCQ 14

Fundamental Duties in Article 51A (inserted by the 42nd Amendment, 1976) are:

A. directly enforceable in court like Fundamental Rights. B. non-justiciable -- constitutional exhortation, not court-enforceable commands. C. legally superior to Fundamental Rights. D. a clause of the Preamble.

Correct answer: B - non-justiciable -- constitutional exhortation, not court-enforceable commands.

Explanation: Article 51A duties are non-justiciable; treating them as enforceable is a frequent error.

MCQ 15

The defensible verdict on 'duty before rights' is:

A. rights should always override duties. B. duties should always override rights. C. reciprocity/co-originality with a sequencing caveat -- foreground duty without demoting rights. D. duties and rights are unrelated, so any ordering is meaningless.

Correct answer: C - reciprocity/co-originality with a sequencing caveat -- foreground duty without demoting rights.

Explanation: Co-originality with a pedagogical sequencing caveat avoids both entitlement-culture and duty-authoritarianism.

MCQ 16

A *legal* duty differs from a *moral* duty chiefly in that the legal duty:

A. binds only in conscience. B. can never be criticised. C. never carries a remedy. D. carries an external sanction and a remedy, whereas the moral duty binds in conscience and grounds critique.

Correct answer: D - carries an external sanction and a remedy, whereas the moral duty binds in conscience and grounds critique.

Explanation: Legal duties are externally enforced; moral duties bind conscience and can indict a silent law.

MCQ 17

'Accountability' of public power means primarily:

A. that power must answer for its use through political, legal and moral channels. B. that citizens must obey the ruler unconditionally. C. that the ruler stands above the law. D. that periodic elections alone suffice regardless of the rule of law.

Correct answer: A - that power must answer for its use through political, legal and moral channels.

Explanation: Accountability is the answerability of power; its channels are political, legal and moral.

MCQ 18

'Power without answer = domination' expresses the idea that:

A. all power is inherently illegitimate. B. power that never has to answer to anyone becomes mastery rather than authority. C. accountability is unnecessary in a modern state. D. domination is the proper aim of the state.

Correct answer: B - power that never has to answer to anyone becomes mastery rather than authority.

Explanation: Unanswerable power collapses the authority/force distinction into domination.

MCQ 19

The best reading of 'Do rights make citizens accountable to the State?' is:

A. yes, rights render citizens wholly subordinate to the State. B. rights abolish every citizen responsibility. C. rights primarily make the *State* accountable to citizens, while also generating citizen responsibilities (reciprocity). D. rights have nothing to do with accountability.

Correct answer: C - rights primarily make the *State* accountable to citizens, while also generating citizen responsibilities (reciprocity).

Explanation: The mark-bearing move is a category correction to reciprocal, primarily State-to-citizen, accountability.

MCQ 20

Elections held without the rule of law and a free press yield:

A. full substantive accountability. B. complete moral accountability only. C. complete legal accountability only. D. merely *formal* answerability that can coexist with substantive domination.

Correct answer: D - merely *formal* answerability that can coexist with substantive domination.

Explanation: Accountability needs all three channels; voting alone can mask domination.

MCQ 21

In Hobbes's account, individuals escape the state of nature by:

A. transferring near-total power to a sovereign in exchange for security. B. forming a limited fiduciary government they may lawfully overthrow. C. surrendering themselves to the general will. D. abolishing the state entirely.

Correct answer: A - transferring near-total power to a sovereign in exchange for security.

Explanation: Hobbes's war of all yields an almost absolute sovereign for security, with a minimal right of resistance.

MCQ 22

Rousseau's phrase 'forced to be free' means that:

A. citizens may legitimately be enslaved by the majority. B. being compelled to obey the general will can be described as freedom from one's own private caprice. C. genuine freedom requires abolishing all law. D. the sovereign must always be a single monarch.

Correct answer: B - being compelled to obey the general will can be described as freedom from one's own private caprice.

Explanation: Obeying the general will (one's rational civic will) is presented as liberation from private impulse, with a majoritarian danger and reply.

MCQ 23

For Hegelian idealism (with Green), the state is best seen as:

A. merely a night-watchman protecting property. B. an enemy of individual freedom as such. C. the ethical whole within which freedom is made concrete, freedom being self-realisation for Green. D. a purely economic instrument of a single class.

Correct answer: C - the ethical whole within which freedom is made concrete, freedom being self-realisation for Green.

Explanation: Idealism makes freedom institutional; Green's positive freedom bridges to the welfare state -- while avoiding deifying the state.

MCQ 24

Marx's contribution *as a theory of the individual-state relation* is:

A. that the state is the actuality of ethical life. B. that natural rights are self-evident and eternal. C. that the state should be maximally and permanently expanded. D. that formal legal rights can mask substantive class domination.

Correct answer: D - that formal legal rights can mask substantive class domination.

Explanation: Marx's relation-critique targets merely formal rights; his fuller ideology is routed to Political Ideologies.

MCQ 25

'Philosophical anarchism' (e.g., Simmons) holds that:

A. the state's claim to a general right to rule is presumptively unjustified, though compliance with just laws may still be reasonable. B. all social order must be abolished immediately and by force. C. the state ought to be totalitarian. D. only hereditary monarchy is legitimate.

Correct answer: A - the state's claim to a general right to rule is presumptively unjustified, though compliance with just laws may still be reasonable.

Explanation: Philosophical anarchism denies a general duty to obey without counselling disorder.

MCQ 26

Gandhi's 'oceanic circles' model is distinct from Western anarchism because it is:

A. a programme to abolish the state by force. B. a non-violent, duty-bound, decentralised order with the individual at the centre and outer rings serving inner ones. C. a rejection of all cooperation between persons. D. a scheme centralising power in one sovereign.

Correct answer: B - a non-violent, duty-bound, decentralised order with the individual at the centre and outer rings serving inner ones.

Explanation: Oceanic circles depict decentralised swaraj -- non-violent and duty-bound -- not coercion-rejecting statelessness.

MCQ 27

The communitarian critique of abstract individualism claims that:

A. the individual has no interests worth protecting. B. all rights should be abolished. C. the self is socially constituted, not a pre-social chooser. D. the market should govern every sphere of life.

Correct answer: C - the self is socially constituted, not a pre-social chooser.

Explanation: Communitarians stress the embedded self and shared meanings, while good answers still safeguard dissent and minority rights.

MCQ 28

'Unconditional rights necessarily lead to anarchy' fails chiefly because it:

A. proves that rights do not exist. B. shows that duties are irrelevant. C. establishes that the state must be totalitarian. D. conflates *unconditional/absolute* with *inalienable*; rights are inalienable yet limitable (harm principle, correlative duties).

Correct answer: D - conflates *unconditional/absolute* with *inalienable*; rights are inalienable yet limitable (harm principle, correlative duties).

Explanation: Bounded, duty-correlative rights do not entail anarchy; only a naive absolutism might.

MCQ 29

'Content-independence' in political obligation means that:

A. one ought to obey because it is the law, not merely when one agrees with the law's content. B. laws have no determinate content. C. citizens may follow whichever laws they prefer. D. the state has no authority at all.

Correct answer: A - one ought to obey because it is the law, not merely when one agrees with the law's content.

Explanation: A genuine duty to obey binds independently of one's agreement with each law's content.

MCQ 30

Nozick's objection to the fair-play account of obligation is that:

A. benefits of any kind always create obligations. B. merely *received* (unsought) benefits cannot by themselves bind one to obey. C. there is no such thing as fairness. D. consent must always be expressly stated.

Correct answer: B - merely *received* (unsought) benefits cannot by themselves bind one to obey.

Explanation: Fair-play must be limited to voluntarily accepted benefits, not benefits 'thrown at' a person.

MCQ 31

Raz's 'service conception' of authority holds that legitimate authority:

A. rests solely on the threat of force. B. is identical to whatever the majority happens to prefer. C. gives pre-emptive reasons -- it is legitimate when one better conforms to right reason by following it. D. can never in principle be justified.

Correct answer: C - gives pre-emptive reasons -- it is legitimate when one better conforms to right reason by following it.

Explanation: Authority serves subjects by giving pre-emptive reasons that replace some first-order deliberation.

MCQ 32

Dworkin's contribution to the individual-state relation includes the claim that:

A. law is only a set of commands backed by sanctions. B. individual rights are always subordinate to collective goals. C. hard cases have no right answer. D. law contains principles as well as rules, and individual rights function as 'trumps' against collective goals.

Correct answer: D - law contains principles as well as rules, and individual rights function as 'trumps' against collective goals.

Explanation: Dworkin's principles, hard cases and rights-as-trumps limit what a legitimate state may demand.

MCQ 33

Civil disobedience is distinguished from ordinary law-breaking by its:

A. public, non-violent, penalty-accepting character aimed at reforming an unjust law. B. secrecy and pursuit of private gain. C. use of maximal violence against officials. D. wholesale rejection of the entire legal order.

Correct answer: A - public, non-violent, penalty-accepting character aimed at reforming an unjust law.

Explanation: Civil disobedience is public, non-violent and penalty-accepting, affirming the rule of law while contesting one law.

MCQ 34

Conscientious objection differs from civil disobedience because it primarily seeks:

A. to overthrow the regime by force. B. a *personal exemption* ('do not make me do this') rather than a public change in the law. C. maximal publicity in order to reform the law. D. an armed, violent resistance.

Correct answer: B - a *personal exemption* ('do not make me do this') rather than a public change in the law.

Explanation: Conscientious objection asks for exemption; civil disobedience is a public, law-changing appeal.

MCQ 35

Ambedkar's warning against the 'grammar of anarchy' (1949) holds that:

A. citizens should never participate in elections. B. satyagraha is justified in every circumstance. C. once constitutional methods of redress exist, unconstitutional methods become harder to justify. D. the Constitution guarantees a right to break any law one dislikes.

Correct answer: C - once constitutional methods of redress exist, unconstitutional methods become harder to justify.

Explanation: Ambedkar prioritised constitutional means once available; there is no constitutional right to disobey.

MCQ 36

Under the Indian Constitution, a legal 'right to civil disobedience' is:

A. an enumerated Fundamental Right in Part III. B. guaranteed absolutely and without limit by Article 19. C. located in Article 51A among the Fundamental Duties. D. non-existent as a legal right -- Article 19 freedoms carry reasonable restrictions, so disobedience is extra-legal and penalty-accepting.

Correct answer: D - non-existent as a legal right -- Article 19 freedoms carry reasonable restrictions, so disobedience is extra-legal and penalty-accepting.

Explanation: There is no fundamental right to break the law; Article 19 is subject to reasonable restrictions.

MCQ 37

The 2024 statism/individualism stem is best handled by arguing that:

A. Aristotle's polis (zoon politikon plus a preserved private sphere and the doctrine of the mean) steers a better middle course than Plato's individual-subordinating ideal state. B. Plato is in fact the true individualist of the two. C. Aristotle abolished private property for all citizens. D. neither thinker discussed the individual and the state.

Correct answer: A - Aristotle's polis (zoon politikon plus a preserved private sphere and the doctrine of the mean) steers a better middle course than Plato's individual-subordinating ideal state.

Explanation: Aristotle preserves individuality within the polis while Plato subordinates it -- comparatively the better middle course.

MCQ 38

A common, mark-losing trap in this theme is to:

A. carefully distinguish the state from the government. B. equate the *state* with the *government of the day*. C. note that Article 51A duties are non-justiciable. D. present an objection together with its reply.

Correct answer: B - equate the *state* with the *government of the day*.

Explanation: Conflating state and government is a basic error; they differ in scope and permanence.

MCQ 39

Regarding India, a correct (non-overclaiming) statement is that:

A. India follows classical Austinian parliamentary sovereignty. B. Parliament is legally supreme over the Constitution. C. India has constitutional supremacy with judicial review, not parliamentary sovereignty. D. Fundamental Duties are judicially enforceable like rights.

Correct answer: C - India has constitutional supremacy with judicial review, not parliamentary sovereignty.

Explanation: India's system is one of constitutional supremacy; asserting parliamentary sovereignty is an overclaim.

MCQ 40

The recommended 'graded verdict' template for this theme is that:

A. the individual is merely an atom existing outside society. B. the individual is merely a cell inside the state-organism. C. order must always defeat liberty in cases of conflict. D. the individual is neither an atom outside society nor a cell inside the state -- specify a justified balance of dignity, justice and order.

Correct answer: D - the individual is neither an atom outside society nor a cell inside the state -- specify a justified balance of dignity, justice and order.

Explanation: The mature verdict rejects both atomism and organicism and specifies a justified balance.

Remedial MCQ 41

Remediate: a student writes 'Bentham rejected all rights.' The accurate correction is:

A. Bentham rejected *natural* rights ('nonsense upon stilts') but affirmed legal rights as 'children of law.' B. Bentham rejected legal rights but retained natural rights. C. Bentham rejected both natural and legal rights entirely. D. Bentham never discussed rights of any kind.

Correct answer: A - Bentham rejected *natural* rights ('nonsense upon stilts') but affirmed legal rights as 'children of law.'

Explanation: The precise target is natural rights; legal rights are accepted -- stating this earns the mark.

Remedial MCQ 42

Remediate: a student treats Article 51A duties as court-enforceable. The correction is:

A. they are enforceable in exactly the same way as Fundamental Rights. B. they are non-justiciable; inserted by the 42nd Amendment (1976), they exhort rather than command. C. they legally override the Part III rights. D. they belong to the justiciable core of the Directive Principles.

Correct answer: B - they are non-justiciable; inserted by the 42nd Amendment (1976), they exhort rather than command.

Explanation: Fundamental Duties are non-justiciable constitutional exhortations.

Remedial MCQ 43

Remediate: a student equates Hegel's ethical state with an endorsement of absolutism. The correction is:

A. Hegel actually wanted a minimal night-watchman state. B. Hegel rejected the very idea of the state. C. Hegel's state is the actuality of ethical life, not a licence for absolutism; the error to avoid is a crude organism-metaphor reducing the person to a cell. D. Hegel and Bakunin in fact hold identical views.

Correct answer: C - Hegel's state is the actuality of ethical life, not a licence for absolutism; the error to avoid is a crude organism-metaphor reducing the person to a cell.

Explanation: Idealism must not slide into deifying the state; Green's individual-centred idealism corrects it.

Remedial MCQ 44

Remediate: a student writes 'rights and duties are always two sides of one coin.' The correction is:

A. the slogan is strictly and universally true. B. rights never correlate with duties. C. only immunities correlate with duties. D. it holds strictly for claim-rights but loosely for liberties; correlativity is normative, not a strict logical identity.

Correct answer: D - it holds strictly for claim-rights but loosely for liberties; correlativity is normative, not a strict logical identity.

Explanation: Hohfeld shows only claim-rights strictly pair with duties.

Remedial MCQ 45

Remediate: a student fuses Gandhi with Western anarchism. The correction is:

A. Gandhi's swaraj is non-violent, duty-bound and decentralised -- not coercion-rejecting statelessness. B. Gandhi sought a centralised sovereign state. C. Gandhi and Bakunin share an identical political programme. D. Gandhi rejected the very idea of duty.

Correct answer: A - Gandhi's swaraj is non-violent, duty-bound and decentralised -- not coercion-rejecting statelessness.

Explanation: Distinguish Gandhi's duty-bound, non-violent decentralism from Western anarchism.

Remedial MCQ 46

Remediate: a student claims 'civil disobedience is a constitutional right in India.' The correction is:

A. yes, it is protected absolutely by Article 19. B. no; there is no fundamental right to break the law, and Article 19 freedoms carry reasonable restrictions, so it remains extra-legal and penalty-accepting. C. yes, it is guaranteed by Article 51A. D. yes, it is expressly enumerated in Part III.

Correct answer: B - no; there is no fundamental right to break the law, and Article 19 freedoms carry reasonable restrictions, so it remains extra-legal and penalty-accepting.

Explanation: Civil disobedience is extra-legal; no constitutional right to disobey exists.

Remedial MCQ 47

Remediate: a student writes 'unconditional rights must cause anarchy.' The correction is:

A. all rights are by nature unconditional. B. rights can never be limited in any way. C. distinguish unconditional/absolute from inalienable; rights are inalienable yet limitable (harm principle, correlative duties), so anarchy does not necessarily follow. D. rights and duties are wholly unrelated.

Correct answer: C - distinguish unconditional/absolute from inalienable; rights are inalienable yet limitable (harm principle, correlative duties), so anarchy does not necessarily follow.

Explanation: The equivocation on 'unconditional' drives the false inference.

Remedial MCQ 48

Remediate: a student asserts 'India has parliamentary sovereignty.' The correction is:

A. yes, exactly as in Austin's command model. B. yes, Parliament stands above the Constitution. C. yes, and judicial review does not exist in India. D. no; India has constitutional supremacy with judicial review -- do not import unlimited parliamentary sovereignty.

Correct answer: D - no; India has constitutional supremacy with judicial review -- do not import unlimited parliamentary sovereignty.

Explanation: Overclaiming parliamentary sovereignty for India is a factual error; the Constitution is supreme.

PYQS AND ANSWER PRACTICE

EXAM APPLICATION 1 - The Individual-State Frame: Concepts and Why a State

This frame opens every stem in the clause: define the terms, locate the case on the minimal <-> stateless spectrum, then adjudicate.

- **2024 Q3(a), 20 marks (owned here)** -- whether Aristotle "steered a middle course between 'Statism' and 'individualism'" better than Plato is, at root, a question about *this* spectrum: statism absorbs the individual into the state; individualism makes the person wholly prior; the "middle course" is the graded relation this subtopic frames. (Deep Plato/Aristotle exposition is routed to Forms of Government and Ideals; the *individual-state balance* is owned here.)
- **2019 Q2(a) / 2023 Q2(b)** open with the same move: name individual, state, rights, duties and accountability, then say which the stem is testing.

MEMORY: Frame spine -> distinguish individual/society/government/state -> "why a state?" (order, rights, public goods, justice, collective action) -> legitimacy vs coercion -> locate on the relation spectrum -> only then argue.

EXAM APPLICATION 2 - Rights I: What a Right Is and Its Sources

Sources-of-rights is the concept-clearing first paragraph for several owner stems.

- **2020 Q2(c), 15 marks (owned here)** -- "Is Indian tradition antagonistic to Individual Rights? ... by taking recourse to the doctrine of Human Rights." Open by fixing the *ground*: the Indian idiom often begins from duty and right conduct (dharma) rather than atomistic rights, which is a different *starting point*, not a flat denial of human worth. (Full treatment with section 1.9 and human rights in ST3.)
- **2025 Q4(c), 15 marks (owned here)** -- the "obligation vs entitlement" statement is answered best after you have distinguished a *claim-right* (strict duty-partner) from a *liberty*; that analytic base begins here and completes in ST3.

MEMORY: 10-mark "what is a right?" -> define (claim/liberty/power/immunity) -> one source contrast (Locke vs Bentham) -> one limitation -> graded verdict that a mature order uses all three registers.

EXAM APPLICATION 3 - Rights II: Hohfeld, Will/Interest, Human Rights and Correlativity

This subtopic owns the analytic core of three owner stems.

- **2018 Q4(a), 20 marks (owned here)** -- "Human rights and human dignity would no longer be the product of a particular culture, rather a common human aspiration ..." Discuss. Route: concede the historically Western *formulation*, then defend universality as *shared aspiration* (dignity, protection from cruelty) that allows plural civilisational vocabularies.
- **2020 Q2(c), 15 marks (owned here)** -- answer via the human-rights doctrine: Indian tradition's duty-idiom is a different starting point, not antagonism to human worth; a synthesis marries the language of right conduct (dharma) to equal dignity.

- **2025 Q4(c), 15 marks (owned here)** -- attack the modal word "necessary" with the Hohfeld move: **claim-rights are necessarily correlative to duties; liberties are not** -- so the connection is conceptual for one class and merely

institutional for another.

MEMORY: For "necessarily connected?" stems, the mark-bearing device is the correlativity analysis, NOT the slogan "two sides of a coin."

EXAM APPLICATION 4 - Duties: Nature, Gandhi's Duty-Centrism and the Priority Debate

This subtopic owns the "duty" half of two stems.

- **2023 Q2(b), 15 marks (owned here)** -- "duty and accountability must be given

priority over rights." Structure: concede the diagnostic value (curbs rights-inflation, revives civic responsibility) -> resist the strong ordering (duty-first can suppress just claims) -> verdict: *reciprocity with a sequencing caveat*, using Gandhi's earned-rights and Article 51A's non-justiciable design as India-centric evidence.

- **2025 Q4(c), 15 marks (owned here)** -- "Duties are of the nature of

obligation while Rights are of the nature of entitlement ... no necessary connection." The duty-side answer: some duties are *correlative* (my claim-right = your duty) and some are *non-correlative civic duties*; hence a *partial*, not total, connection -- pair this with the Hohfeld analysis from ST3.

MEMORY: Priority stems reward a *graded verdict* (co-originality + sequencing caveat), never a flat "duties win" or "rights win."

EXAM APPLICATION 5 - Accountability of Public Power

Accountability is the owned core of the 2019 stem and the second limb of 2023.

- **2019 Q2(a), 20 marks (owned here)** -- "Do rights make citizens accountable

to the State? Argue in the light of ... Indian scenario." Move: distinguish *accountability* (answering for power) from *responsibility* (duties that accompany rights); argue rights make the **State** answerable to citizens (judicial review, free press, elections) while *also* generating citizen responsibilities -> a reciprocal, not one-way, relation.

- **2023 Q2(b), 15 marks (co-owned with ST4)** -- the "accountability" limb:

accountability *is* rightly prioritised, because unanswerable power voids the value of any right; but that supports rights, it does not subordinate them.

MEMORY: When a stem presupposes a one-way direction, the high-value move is a *reasoned category correction*, backed by named institutions (rule of law, judicial review, free press), not indignation.

EXAM APPLICATION 6 - Theories of the Relationship: Liberal, Idealist and Social Contract

This subtopic owns the "theories" engine of three owner stems.

- **2024 Q1(b), 10 marks (owned here)** -- "origin and development of Social

Contract Theory." Trace: ancient anticipations (Glaucou's challenge; Sophist convention-talk) -> classical trio Hobbes -> Locke -> Rousseau (security -> limited trust -> general will) -> modern revival as a hypothetical device (routed to Justice). Ten-mark discipline: origin + development + one line of significance.

- **2021 Q4(c), 15 marks (owned here)** -- "does social contract adequately

address human rights?" Assess: it *grounds* limits on power and consent (Locke), but *abstracts* from real inequalities of the state of nature and can privilege propertied contractors -> partial adequacy, needs the human-rights and welfare supplements from ST3/ST7.

- **2024 Q3(a), 20 marks (co-owned with ST1/ST10)** -- the liberal (individualist

pole) vs idealist (statist pole) mapping is what makes the "middle course" intelligible.

MEMORY: For contract stems, always *name the state-of-nature premise* -- the deal follows from the diagnosis. Change the premise (Hobbes vs Locke vs Rousseau) and you change the state.

EXAM APPLICATION 7 - Radical and Situated Critiques: Anarchist, Marxist, Welfare, Communitarian, Feminist

This subtopic owns the "does rights-talk collapse into anarchy?" stem and feeds the critique paragraphs of many others.

- **2022 Q4(b), 15 marks (owned here)** -- "Does the idea of unconditional rights

necessarily lead to anarchy?" Critically examine. Structure: distinguish *unconditional/absolute* rights from *inalienable* rights -> show mature rights carry *internal limits* (harm principle) and *correlative duties* -> so properly bounded rights do **not** entail anarchy; only a naive absolutism might -> use the anarchist and communitarian angles as the "critically examine" tension.

- Welfare/communitarian/feminist material supplies the *objection-reply* limb in 20-mark answers on liberalism, rights and the minimal state.

MEMORY: Attack the qualifier "unconditional/necessarily." Rights are *inalienable* yet *limitable*; that single distinction defuses the anarchy charge.

EXAM APPLICATION 8 - Political Obligation: Why Should the Individual Obey the State?

Political obligation is the analytic backbone of the accountability, duty and resistance stems.

- Feeds **2019 Q2(a)** (accountability): if the *state's* claim to obedience must be justified, then rights and answerability are the citizen's side of the same relation.
- Feeds **2023 Q2(b)** (duty priority): the duty to obey is *defeasible* and content-independent, which is why "duty before rights" cannot be unconditional.
- Sets up **ST9** resistance: no blanket duty to obey (philosophical anarchism) + rights as trumps (Dworkin) = the licence, tightly bounded, for principled disobedience.

MEMORY: In any "should we obey / must we resist" answer, first *name the ground* (consent/fair play/natural duty/associative/gratitude) and *run the four > tests*; a graded verdict follows almost automatically.

EXAM APPLICATION 9 - Disobedience, Resistance and the Indian Constitutional Application

This subtopic owns the resistance limb and completes the anarchy stem.

- Completes **2022 Q4(b)** -- the reply to "rights -> anarchy" is the *ladder*: disobedience is *graded, bounded and penalty-accepting*, not a licence for disorder; Ambedkar's "grammar of anarchy" is the India-centric guardrail.
- Supplies the resistance paragraph in any 20-marker on obligation, Gandhi or liberty: legal dissent -> conscientious objection -> civil disobedience -> resistance, with the near-just-society and rule-of-law conditions.

MEMORY: Never present disobedience as all-or-nothing. Marks come from the *ladder* + the *conditions* (unjust law, channels exhausted, public, > non-violent, penalty accepted) + the *Indian caution* (Article 19 limits, Ambedkar 1949).

EXAM APPLICATION 10 - Inter-Thinker Debates, Criticisms and Common Traps

This subtopic owns the synthesis and the flagship 20-marker.

- **2024 Q3(a), 20 marks (owned across ST1/ST6/ST10)** -- Aristotle vs Plato on

steering between statism and individualism: use the accurate axis above, agree with qualification (Aristotle's mean and preserved private sphere give a better *balance*, though both are perfectionist by modern lights), and close with the relation-spectrum verdict.

- Provides the *debate* and *criticism* paragraphs that lift any 15/20-marker from descriptive to evaluative.

MEMORY: A 20-marker is won in paragraphs 4-5: stage a real debate, voice the criticism of your own side, then deliver a graded verdict. The spine above makes this automatic.

Workbook Source Audit

- Exact PYQ wording, year and marks: local Socio-Political Philosophy Paper II bank, 2018-2025.
- Exactly 9 owner questions (2018:1, 2019:1, 2020:1, 2021:1, 2022:1, 2023:1, 2024:2, 2025:1).
- Ownership discipline: Rousseau's natural-vs-artificial inequality (Social and Political Ideals), the sovereignty thinkers (Sovereignty), democracy / monarchy / theocracy-as-a-form (Forms of Government), Marxism / anarchism as ideology and Gandhi-as-anarchist (Political Ideologies), capital punishment and corruption (Crime and Punishment) and female foeticide / gender (Gender Discrimination) are kept separate and not double-owned here. The 2024 origin-of-social-contract part and the 2024 Aristotle-vs-Plato statism / individualism part are owned here.
- Model solutions authored at examiner grade: thesis -> doctrine in the thinker's own terms -> named source / example -> objection/reply -> graded verdict, each closing with a "Why this earns marks" note.
- MCQs: 40 core plus 8 remedial, exactly 48, strict A-B-C-D rotation 12 times.
- Original Mains: one solved 10-marker, one solved 15-marker and one solved 20-marker.
- Provenance discipline observed throughout: Dworkin (1977), Thoreau (1849), the 1930 Salt Satyagraha and Ambedkar's 25 November 1949 address are cited by title/position and date only; Article 51A (42nd Amendment, 1976) is a dated constitutional illustration, and Fundamental Duties are non-justiciable.
- Comparative-context discipline: Aristotle, Plato, Hegel, Green, Marx, the named anarchists and the sovereignty thinkers are marked routing context, not re-expounded; Hobbes, Locke and Rousseau are taught in full as the canonical contractarians.
- No current-affairs anchor is used (no verified 2026 development forced); relevance is static and syllabus-driven.
- Final consolidated register notes are intentionally excluded from this workbook.

Practice Design

The workbook sequence is the 9 exact verified PYQs -> 40 core MCQs -> 8 remedial MCQs -> original 10/15/20-mark Mains practice. There are no register notes and no canonical apparatus block in this workbook.

FINAL ANSWER SPINE (use it on every stem):

DIRECTIVE -> THESIS -> CONCEPT MAP (right/duty/accountability/obligation) -> STRONGEST CASE -> RIVAL TRADITION -> OBJECTION / REPLY / RESIDUAL -> ONE DATED INDIAN ILLUSTRATION (classified) -> GRADED VERDICT conceding something to the loser

SOLVED PYQ BANK - EXACTLY 9 VERIFIED OWNER QUESTIONS

Exact wording, year and marks are parsed from the local Socio-Political Philosophy Paper II bank for 2018-2025. This clause owns exactly 9 primary parts (2018:1, 2019:1, 2020:1, 2021:1, 2022:1, 2023:1, 2024:2, 2025:1). Ownership discipline: Rousseau's natural-vs-artificial inequality (2021) is owned by Social and Political Ideals; sovereignty thinkers (Austin, Bodin, Laski, Kautilya) by Sovereignty; democracy / monarchy / theocracy-as-a-form by Forms of Government; Marxism / anarchism as ideology and Gandhi-as-anarchist by Political Ideologies; capital punishment and corruption by Crime and Punishment; female foeticide / gender by Gender Discrimination. Those are NOT counted here even where rights-and-state language brushes against them. The 2024 origin-of-social-contract part and the 2024 Aristotle-vs-Plato statism / individualism part ARE owned here, and the borderline is explained rather than double-owned.

Solved PYQ 1 - 2018 Q4(a), 20 marks

Question: "Human rights and human dignity would no longer be the product of a particular culture, rather a common human aspiration for an ideal world." Discuss.

Model solution

Directive: *Discuss* -> present both sides and adjudicate, not a one-sided essay.

Thesis. The statement is broadly defensible once we separate the *genealogy* of rights-language from the *aspiration* it protects. The modern grammar of human rights has a particular (largely post-Enlightenment, Western) provenance, but the core it guards -- human **dignity** and protection from cruelty -- answers a common human aspiration that many civilisational idioms voice in their own terms.

Concede the genealogy. The formal charters and the vocabulary of "rights" crystallised in a particular cultural-historical setting; to that extent rights- talk *was* the product of a particular culture.

Defend the universality of the aspiration. Distinguish **universality of the aspiration** from **uniformity of articulation**. What is common is the concern for dignity and against cruelty; what varies is the vocabulary. Will theory and interest theory both locate the point of rights in protecting agency and well- being -- goods no culture disavows. India's idiom expresses human worth through dharma, ahimsa and sarvodaya rather than atomistic claims, yet reaches the same protective floor.

Objection (relativist). Conceptions of person, authority and obligation differ; a single grammar risks cultural hegemony.

Reply. A *thin* universal core (dignity, no cruelty) plus *thick* plural articulation -- an overlapping consensus -- avoids both hegemony and relativist nihilism.

India-centric evidence. The Constitution fuses liberal Fundamental Rights with directive-principle welfare and Fundamental Duties (Article 51A) -- a syncretic articulation of the common aspiration, not a mere import.

Graded verdict. Agree with qualification: human dignity *is* a common aspiration, so the statement holds of the *aspiration*; of the institutional *grammar* it remains partly aspirational rather than already accomplished.

MEMORY: Why this earns marks - it separates aspiration from formulation, voices and answers the relativist objection via overlapping consensus, and anchors the Indian constitutional synthesis instead of asserting a bare "rights are universal."

Solved PYQ 2 - 2019 Q2(a), 20 marks

Question: Do rights make citizens accountable to the State? Argue in the context of the present Indian scenario.

Model solution

Directive: *Argue* -> take and defend a reasoned position.

Thesis (category correction). Rights *primarily* make the **State accountable to citizens**, not citizens accountable to the State; but because rights also carry responsibilities, a *reciprocal* accountability exists. The stem's implied one-way direction is the thing to correct.

Distinguish two ideas. *Accountability* = answering for the use of power; *responsibility* = the duties that accompany a right. Rights institutionalise the first against the State and generate the second in the citizen.

Direction of accountability. Locke's *fiduciary trust* is cashed out institutionally as judicial review, a free press and periodic elections: these make public power answerable to the individual. That is the core sense in which rights bear on accountability.

Reciprocity. My right to free expression carries a duty not to defame or incite -- Article 19 freedoms are subject to **reasonable restrictions** -- so rights also make citizens *responsible*. Claim-rights are correlative to duties (Hohfeld), which blocks the "rights breed pure entitlement" worry.

Indian scenario. Part III makes the State *justiciably* answerable through judicial review; Fundamental Duties (Article 51A) are **non-justiciable** and express citizen responsibility -- they do *not* make citizens legally *accountable to the State*. So the enforceable vector runs State-ward.

Objection. Does this not ignore civic obligation? **Reply.** No -- reciprocity retains citizen responsibility; it only denies that rights make the citizen *subordinate-accountable* to the State.

Graded verdict. Rights make the State accountable to citizens and citizens co-responsible; corrected to reciprocity, not one-way subordination.

MEMORY: Why this earns marks - it performs a reasoned category correction, uses the accountability/responsibility distinction, and pins Article 19 + Part III + Article 51A precisely without overclaiming enforceability.

Solved PYQ 3 - 2020 Q2(c), 15 marks

Question: Is Indian tradition antagonistic to Individual Rights? Consider it by taking recourse to the doctrine of Human Rights.

Model solution

Directive: answer by taking recourse to the doctrine of Human Rights -- keep the human-rights lens throughout.

Thesis. Indian tradition is **not** inherently antagonistic to individual rights; it begins from a *different starting point* -- duty, dharma, social embeddedness -- that is compatible with, and can ground, human rights.

Via the human-rights doctrine. The universality of **dignity** as a common human aspiration (not a purely Western artefact) lets the Indian idiom count as an *alternative articulation* of human worth: dharma (reciprocal obligation), ahimsa (non-injury) and antyodaya (the last person first) protect the person without atomistic rights-talk.

Different grammar, not denial. Gandhi's duty-first stance ("rights follow performed duty") is *anti-atomism*, not anti-rights; it can even license disobedience to unjust power.

Honest tension. Some traditional practices -- caste hierarchy, untouchability -- *did* subordinate the individual. **Ambedkar's** critique names this frankly.

Correction within the tradition. The Constitution -- itself a modern Indian document -- abolishes untouchability, guarantees equality and Fundamental Rights, and thereby reconstructs the tradition's affirmative strand into justiciable human rights.

Objection. Does duty-centrism subordinate the individual? **Reply.** Its duties run to conscience and community and are paired, constitutionally, with enforceable rights -- so the individual is secured, not dissolved.

Graded verdict. Indian tradition is *plural*: strands both constrain and affirm the individual. Read through the human-rights doctrine, the affirmative strand (dignity, later constitutionalised) shows the tradition is not inherently antagonistic to individual rights.

MEMORY: Why this earns marks - it stays inside the human-rights doctrine as the stem demands, distinguishes different-starting-point from antagonism, and concedes the caste constraint with the Ambedkar/constitutional correction rather than romanticising.

Solved PYQ 4 - 2021 Q4(c), 15 marks

Question: Evaluate whether the social contract theory adequately addresses the different issues of human rights.

Model solution

Directive: *Evaluate* -> weigh adequacy, deliver a verdict.

Thesis. Social contract theory addresses human rights *partially*: it grounds limits on power and the protection of civil-political rights, but abstracts from real inequality and so under-addresses socio-economic rights.

Doctrine. Hobbes secures the right to life indirectly through order; **Locke** makes natural rights (life, liberty, property) *precede* the state, treats government as a fiduciary **trust**, and grounds a right of resistance on breach -- the strongest contractarian basis for human rights; **Rousseau** secures civic freedom through the general will.

Where it is adequate. Locke supplies rights-as-limits, consent and resistance -- a genuine normative floor and a check on tyranny.

Where it is inadequate. The state-of-nature device *abstracts* from structural inequality; propertied contractors are privileged (the Marxist and feminist critiques); "consent" is largely fictional for those born into the order; and the model is thin on positive/welfare rights.

Reply / supplement. The modern *hypothetical* contract (routed to Justice) repairs the consent problem as a test of justification; the welfare/capabilities supplement adds the social minimum.

India-centric evidence. The Constitution pairs contract-style Fundamental Rights with **Directive Principles** (welfare) -- an implicit admission that formal rights need a social minimum to be real.

Graded verdict. Adequate for civil-political rights *as limits*; inadequate for socio-economic human rights without a welfare/capabilities supplement.

MEMORY: Why this earns marks - it grades adequacy by rights-type, names the abstraction-from-inequality problem, uses the FR-DPSP pairing as India evidence, and routes the modern contract without padding.

Solved PYQ 5 - 2022 Q4(b), 15 marks

Question: Does idea of unconditional rights necessarily lead to anarchy? Critically examine.

Model solution

Directive: *Critically examine* -> test the inference, concede any grain of truth, then judge.

Thesis. No -- unconditional rights do *not necessarily* lead to anarchy. The inference trades on an ambiguity in "unconditional."

Fix the equivocation. Distinguish **unconditional/absolute** (limitless, overriding everything) from **inalienable** (cannot be forfeited or sold). Human rights are properly *inalienable yet limitable*, not absolute.

Why bounded rights do not entail anarchy. Mature rights carry *internal limits* (Mill's **harm principle**) and *correlative duties* (Hohfeldian claim- rights); in India, Article 19 freedoms are expressly subject to **reasonable restrictions**. Rights so bounded are compatible with -- indeed require -- order.

Concede the grain of truth. A *naive absolutism* -- every claim trumps, no limits, no duties -- would corrode order; the examiner wants this acknowledged. The anarchist and communitarian critiques (rights-inflation, atomism) sharpen the tension.

Reply. The remedy is *bounded* rights + duties + accountability, not the abolition of rights. **Ambedkar's** warning against the "grammar of anarchy" (1949) is the India-centric guardrail: once constitutional redress exists, boundless agitation is unjustified.

Graded verdict. *Unconditional/absolute* rights could threaten order; but rights are properly inalienable-yet-limited, so the idea of rights does not *necessarily* lead to anarchy. The word "necessarily" is where the claim fails.

MEMORY: Why this earns marks - it dismantles the modal "necessarily," fixes the unconditional/inalienable equivocation, concedes the grain of truth, and anchors Article 19 + the grammar-of-anarchy guardrail.

Solved PYQ 6 - 2023 Q2(b), 15 marks

Question: Do you agree that duty and accountability must be given priority over rights for the better functioning of a State? Justify your answer.

Model solution

Directive: *Do you agree* -> stake a position with reasons and qualification.

Thesis. Agree with qualification. *Accountability* rightly has a priority (unanswerable power voids any right), and foregrounding *duty* is defensible in a culture of entitlement -- but a *strong ordering* that subordinates rights is dangerous.

Disaggregate the claim. Treat duty and accountability separately. (i) **Accountability-priority is sound:** it *supports* rights by making power answerable through political, legal and moral channels. (ii) **Duty-priority is partly sound:** Gandhi's earned-rights and civic responsibility curb rights- inflation -- but "duty first" can be weaponised to *silence* just claims.

Doctrine. Rights and duties are **reciprocal / co-original** (claim-rights are correlative to duties -- Hohfeld). Fundamental Duties (Article 51A) are **non-justiciable** exhortation -- by design they cannot be used as a lever to cancel rights.

Objection. Duty-first regimes historically suppress dissent (order over liberty). **Reply.** Keep a *sequencing caveat* -- foreground duty pedagogically -- without demoting rights to conditional grants of the State.

India-centric evidence. The constitutional order makes rights justiciable and duties exhortatory, encoding exactly this asymmetry: power must answer; duties are urged; rights are secured.

Graded verdict. Accountability first (it legitimises coercion); duty and rights *co-original* with a sequencing caveat -- not a flat "duty over rights."

MEMORY: Why this earns marks - it splits duty from accountability, grants each its due, blocks the authoritarian misuse of duty-talk, and lands a graded verdict with Article 51A precision.

Solved PYQ 7 - 2024 Q1(b), 10 marks

Question: Present a brief account of origin and development of Social Contract Theory.

Model solution

Directive: *Brief account of origin and development* -> a 10-mark answer: origin + development + one line of significance, tightly.

Thesis. Social contract theory explains political authority as arising from an agreement among individuals, developing from ancient anticipations, through the classical trio, to a modern hypothetical revival.

Origin (anticipations). Glaucon's challenge in Plato's *Republic* treats justice as a compact born of mutual restraint; Sophist convention-talk casts law as *nomos* (agreement) rather than nature.

Classical development.

- **Hobbes:** the war of all -> transfer of near-total power to a sovereign for **security**; minimal right of resistance.
- **Locke:** natural rights *precede* the state; a **limited fiduciary government**; resistance justified on breach of trust.
- **Rousseau:** surrender to the **general will** -> civic freedom; obeying the law

one gives oneself ("forced to be free").

Modern revival. The contract becomes a *hypothetical* device -- a test of the principles free and equal persons could justify to one another (developed under Theories of Justice), not a historical event.

Significance. It shifts the ground of legitimacy from divine right or brute force to **consent and reason**, and supplies the vocabulary of limited, rights- respecting, accountable government.

Verdict. One method -- agreement from a baseline -- with evolving purposes: security (Hobbes) -> trust and rights (Locke) -> civic freedom (Rousseau) -> hypothetical justification (modern).

MEMORY: Why this earns marks - at 10 marks it keeps origin + development + significance, names each thinker's premise crisply, and routes the modern contract without overspending the word budget.

Solved PYQ 8 - 2024 Q3(a), 20 marks

Question: Do you agree with the view that Aristotle was more successful than Plato in steering a middle course between 'Statism' and 'individualism'? Discuss with arguments.

Model solution

Directive: *Do you agree with a comparative claim ("more successful than") -> compare, do not merely describe.*

Thesis. Broadly agree. On the **statism <-> individualism** axis, Aristotle's polis steers nearer a defensible middle than Plato's individual-subordinating ideal state -- though both remain perfectionist by modern liberal lights, so the success is *comparative*, not absolute.

Plato (the statist/organic pole). The *Republic* subordinates the individual to the ideal state: justice is each class performing its function; the guardians hold no private family or property; the individual's good is realised only through the whole. This tilts toward **Statism/organicism**.

Aristotle (the middle). Man is *zoon politikon* -- fulfilled only in the polis, which is "prior in nature" -- yet the household retains **private property** and a private sphere, and virtue is the **mean** between extremes. The polis is an *association for the good life*, not a super-organism; individuality survives *within* it.

Objection 1. Aristotle also excludes slaves, women and non-citizens, so his "middle" is narrow. **Reply.** Relative to Plato's abolition of the private sphere for the guardians, Aristotle still preserves an individual/household domain -- the comparison, not an absolute standard, is what the stem asks.

Objection 2 (liberal). Neither is a modern individualist; both subordinate the person to a substantive common good.

Reply. Precisely -- but "more successful" is comparative, and Aristotle's mean is the better balance.

India-centric tie. The mature verdict -- neither atom outside society nor cell inside the state -- echoes Aristotle's balance; the Indian order pairs rights with duties and directive welfare, a graded middle.

Graded verdict. Agree, comparatively: Aristotle steers the better middle course, with the caveat that both fall short of modern rights-based individualism.

MEMORY: Why this earns marks - it stages the statism/individualism axis accurately, *compares* Plato and Aristotle rather than describing each, answers the comparative modal "more successful," and voices two objections with replies.

Solved PYQ 9 - 2025 Q4(c), 15 marks

Question: "Duties are of the nature of obligation while Rights are of the nature of entitlement. Therefore there is no necessary connection between the two." Do you agree with this statement? Give reasons and justification for your answer.

Model solution

Directive: *Do you agree -> evaluate the quoted claim and qualify.*

Thesis. Disagree with qualification. There *is* a necessary connection for one class of rights -- **claim-rights are strictly correlative to duties** -- while for liberties the connection is looser. So "no necessary connection" is false as a *universal* claim, even though the duty/right *modes* genuinely differ.

Concede the modal distinction. Duties are of the nature of **obligation** (what one is bound to do); rights are of the nature of **entitlement** (what one may claim). As modes they are categorically distinct -- the grain of truth in the statement.

But apply Hohfeld. A **claim-right** is *by definition* correlative to a **duty** (my claim-right = your duty); a **liberty** correlates only to a "no-right," not to a duty. Hence the connection is *necessary for claim-rights* and *contingent for liberties*.

Add civic duties. Some duties are *non-correlative* -- Fundamental Duties (Article 51A) answer to no one's claim-right -- which supports the "distinct modes" point *without* severing all connection.

Objection. Are there not rights with no duty-bearer (manifesto/aspirational rights)? **Reply.** Those are *incompletely institutionalised* claims; once institutionalised they acquire duty-bearers -- so they qualify, not refute, correlativity.

India-centric evidence. Part III rights impose correlative duties on the State (and others); Article 51A duties are non-justiciable and largely non-correlative -- the system exhibits *both* correlative and independent elements.

Graded verdict. The modes differ, but a **necessary connection holds for claim-rights**; therefore disagree with the blanket "no necessary connection," while granting the distinctness of duty-as-obligation and right-as-entitlement.

MEMORY: Why this earns marks - it uses Hohfeld to split necessary (claim-rights) from contingent (liberties), grants the modal distinction, anchors Article 51A + Part III, and refuses the false universal in the quotation.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Three original questions authored for this package (not PYQs), one each at 10, 15 and 20 marks, with full model solutions.

Original Mains 1

Original | Socio-Political Philosophy Paper II | 10 marks | Answer in 150 words.

Question: Distinguish the state from government and civil society, and explain why a state is needed at all.

Model solution

Thesis. The three are distinct in scope and function; the state is justified instrumentally by goods individuals cannot secure alone.

Distinctions. The **state** is the organised public authority claiming binding power over a territory (permanent, sovereign in reach). The **government** is the transient organ that *exercises* that authority. **Civil society** is the sphere of voluntary associations between family and state.

Why a state. To supply order/security, rights-protection, public goods, and justice/welfare, and to enable collective action -- an impartial umpire and a provider that scattered individuals cannot be for themselves.

Caveat. Because a protector can dominate, the state must be *justified, limited and answerable* (legitimacy), not merely obeyed (coercion).

Verdict. Keep the words apart: government may fall while the state persists; civil society checks both. The state earns obedience only as a bounded servant of the individual's security and dignity.

MEMORY: Why this earns marks - crisp definitions, the instrumental justification, and the legitimacy-vs-coercion caveat, all inside the 150-word budget.

Original Mains 2

Original | Socio-Political Philosophy Paper II | 15 marks | Answer in 250 words.

Question: 'A right without a correlative duty is socially empty.' Examine, using Hohfeld's analysis and Indian constitutional examples.

Model solution

Thesis. The claim is true as a *normative-social* observation but false as a *strict logical identity*; Hohfeld shows why.

Hohfeld. A **claim-right** is strictly correlative to a **duty** (my claim-right = your duty), so a claim-right that literally no one must respect *is* socially empty. But a **liberty** correlates only to a 'no-right', a **power** to a liability, an **immunity** to a disability -- none of these is a duty. So not every 'right' needs a correlative duty to be meaningful.

Application. The maxim holds for claim-rights (a right to life is empty unless others owe forbearance and the State owes protection) but overstates for liberties (my liberty to speak imposes on you no positive duty to assist me).

Indian examples. Part III rights impose *correlative duties* on the State and others -- the right against exploitation and the right to life (with its expansive State obligations) are enforceable via judicial review. Conversely, Fundamental Duties (Article 51A, 42nd Amendment, 1976) are **non-justiciable** and largely *non-correlative* -- civic duties answering to no one's claim-right -- which shows duties and rights are distinct modes, not a strict one-to-one pairing.

Objection/reply. Manifesto ('aspirational') rights seem duty-less; but they are *incompletely institutionalised* claims that acquire duty-bearers once realised.

Verdict. 'Socially empty' is apt for claim-rights and a useful warning against rights-inflation, but correlativity is normative, not a universal logical law.

MEMORY: Why this earns marks - it deploys Hohfeld precisely, splits claim-rights from liberties, and evidences both correlative (Part III) and non-correlative (Article 51A) elements in the Indian order.

Original Mains 3

Original | Socio-Political Philosophy Paper II | 20 marks | Answer in 250 words.

Question: Critically examine the claim that the individual is prior to the state. Contrast liberal, idealist and Gandhian positions and defend a graded verdict.

Model solution

Thesis. 'Priority' is ambiguous: the individual is *morally* prior (the state exists for persons) but not *ontologically* self-made (persons are socially constituted). A graded verdict honours both.

Liberal (person prior). Locke and Mill make the individual and her rights conceptually prior; the state is a limited instrument protecting a private sphere (negative liberty, the harm principle). Strength: it secures dignity and dissent. Weakness: abstract atomism can ignore structural power.

Idealist (person realised within the whole). Hegelian idealism holds that freedom becomes concrete only in the ethical institutions of family, civil society and state; Green recasts this as positive freedom, the state removing hindrances to self-realisation. Strength: it explains why a bare night-watchman state under-serves freedom. Weakness: the risk of deifying the state.

Gandhian (individual at the centre, yet duty-bound). Swaraj begins with rule over oneself; the oceanic-circles image puts the individual at the centre with outer rings *serving* the inner -- decentralised, non-violent, duty-first. Strength: it fuses individuality with responsibility. Weakness: problems of scale, defence and coordination.

Objection/reply. The communitarian and feminist critiques deny a pre-social chooser; reply -- concede constitution-by-society while insisting the constituted self still bears inviolable dignity and dissent.

India-centric evidence. The Constitution encodes the balance: justiciable Fundamental Rights, non-justiciable duties (Article 51A), and directive welfare.

Graded verdict. Morally prior, socially constituted: the individual is neither an atom outside society nor a cell inside the state -- so a justified, limited, answerable state is a *condition* of individuality, not merely its rival.

MEMORY: Why this earns marks - it disambiguates 'prior', contrasts three traditions with strength-and-weakness each, answers the communitarian/feminist objection, and lands a graded India-anchored verdict.